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The Role of the Media Service Act, No.12 of 2016 in Preventing Cyber Defamation in Tanzania

By

Asherry Magalla

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Dedication

To My Son, Ryan Asherry Magalla

Acknowledgement

I acknowledge G.O.D. because I wouldn’t have everything and every person surrounds me without HIM.

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The Role of the Media Service Act, No.12 of 2016 in Preventing Cyber Defamation in Tanzania

By

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Keywords: Defamation, Cyber Defamation, Media.

1.0 An Introduction

The Media Service Act, No.12 of 2016, is enacted with provisions for promotion of professionalism in the media industry, for establishment of the Journalists Accreditation Board, Independent Media Council and framework for regulation of media services and for other related matters.

This paper provides a number of definitions of defamation as defined by many authors and it further provides for the position cyber defamation as described by the Act.

For the purpose of this paper the term Act shall mean, “The Media Service Act, No.12 of 2016”.

1.1 Author’s Views on the Term Defamation

In my view, defamation is the tort action whereby one person known as the defendant before the court of law, provides, publishes, states, transmits, distributes, disseminates, circulates, delivers, exhibits, exchanges, barter, prints, copy, sells or offers or making available in any way false, fake or wrong information towards another person known as plaintiff before the

court of law, by any means including in electronic devices whether are connected with the internet or not connected on the internet, which in the end such transmitted, published, and stated information caused damage, injury or harm to another person's reputation or character.

It is very important for the person who brings the defamation claim to ensure that such publication of the untrue statement was publish to a third party and not to a person (s) who are close related to him such as family, close friend and others.

But this requirement is determined differently upon a particular country which the claim of defamation is submitted. This is simply because by the meaning of publication to a third party needs to amount to public publication. And the term public is determined by particular legislations of a particular country, this is why the issue of publication in defamation is different from one place to another.

1.1.1 Communication to public as defined by Indian Act No. 27 of 2012

For example in India, "communication to public means making any work or performance available for being seen or heard or otherwise enjoyed by the public directly or by any means of display or diffusion otherwise than by issuing physical copies of it whether simultaneously or at places and times chosen individually, regardless of whether any member of the public actually sees, hears or otherwise enjoys the work so made available."[1]

[1] Section 2 (ff) of Act No. 27 of 2012.

1.1.2 Communication to public as defined by Copyright Amendment Act 9 of 2002

In South Africa the Act provides that a work shall be deemed to have been published if copies of such work have been issued to the public with the consent of the owner of the copyright in the work in sufficient quantities to reasonably meet the needs of the public, having regard to the nature of the work.[2]

1.1.3 Communication to public as defined by Tanzanian Legislations

1.1.3.1 Law of Interpretation Act [Cap.1, R.E. 2002]

In Tanzania the **Law of Interpretation Act**,[3] provides for the meaning of publication that;

"Publication" means–

(a) All written and printed matter;

(b) any record, tape, wire, perforated roll, cinematograph film or image or other contrivance by means of which any words or ideas may be mechanically, electronically, or electrically produced, reproduced, represented, or conveyed;

(c) Anything whether of a similar nature to that described in paragraph (b) of this definition or not, containing any visible representation, or by its form, shape, or in any manner, capable of producing, reproducing, representing, or conveying words or ideas; and

[2] Section 1 (5) of Cap.98 of 1978 (as amended by Copyright Amendment Act 9 of 2002).
[3] [Cap.1, R.E. 2002]

(d) Every copy and reproduction of a publication as defined in paragraphs (a), (b), or (c);

But the Act does not provide exactly as to what extent the term publication comprises in terms of numbers, group or groups or persons. The issue is, can a publication being a publication if it has been published to a single person or a group of persons or more than one person.

1.1.3.2 Tanzania Penal Code [Cap.16, R.E. 2002]

As per the **Tanzania Penal Code**,[4] states that;

"public" refers not only to all persons within Mainland Tanzania but also to the persons inhabiting or using any particular place, or any number of those persons, and also to such indeterminate persons as may happen to be affected by the conduct in respect to which such expression is used.

This Act specified as to what extent does the issue of publication may referring to, that it has to be in a group of persons in which a single person cannot amount to a public therefore the same to publication.

Still the Act does not provide the aspect of closeness between the defendant and the third party in which the defamatory statement was published to him or her or them.

1.1.3.3 Copyright and Neighbouring Rights Act [Cap.218, R.E. 2002]

As per **Copyright and Neighbouring Rights Act**, communication to the public" means the transmission by wire, or without wire, of the images or

[4] [Cap.16, R.E. 2002]

sounds or both, of a work, a performance, a sound recording or a broadcast, in such a way that the images or sounds can be perceived or accessed by persons outside the normal circle of a family and its closest social acquaintances at a place so distant from the place where the transmission, the images or sounds would not be perceivable or accessible and, further, irrespective of whether the persons can receive or access the images or sound at the same place and time, or at different places and/or times individually chosen by them.[5]

This definition provided by the Act, provides a good meaning as to what extent does the act of publishing something amount to publication. This is simply because it also provide to whom publication is said to be made as to the normal circle of a family and its closest social acquaintances.

This is exactly as what I tried to define the term defamation regarding to the part of publication.

1.2 Defamation as professed by others

1.2.1 Black's Law Dictionary

Black's Law Dictionary (1990),[6] defamation is an intentional false communication either published or publicly spoken, that injures another's reputation or good name.

1.2.2 The A.C.T. Community Law Reform Committee

The A.C.T. Community Law Reform Committee in its 1996 report on defamation law, outlined defamation as follows:

[5] Section 4 of [Cap.218, R.E. 2002].
[6] Black's Law Dictionary, 7th Edition, 1990

"Defamation is the publication of words or images to a person that damages the reputation of another ['slander' if spoken words, 'libel' if written words or images]. A defamatory statement is one that is likely to cause ordinary, reasonable people to think less of the person about whom the words or images are published. An inference that casts a defamatory imputation is enough to bring an action.[7]

1.2.3 Faulks Committee in England in 1975

Faulks Committee in England in 1975 recommended that : 'Defamation shall consist of the publication to a third party of matter which in all the circumstances would be likely to affect a person adversely in the estimation of reasonable people generally'.[8]

1.2.4 Salmond (1961)

Salmond (1961) defines the wrong of defamation as the publication of a false and defamatory statement about another person without lawful justification.[9]

1.2.5 Underhills (1946)

Underhills (1946), such a statement becomes defamation if it is made about another without just cause or excuse, whereby he suffers injury to his reputation (not to his self-esteem). He considers defamatory statement as one which imputes conduct or qualifies tending to disparage or degrade

[7] Defamation Laws & the Internet, at https://www.efa.org.au/Issues/Censor/defamation.html-retrieved on 23rd June 2016
[8] Andrew Kenyon, *Defamation: Comparative Law and Practice*, CRC Press, 5 Sep 2013
[9] Salmond on Torts,13 1961 edition. P361 th Law Torts,

any person, or to expose him to contempt, ridicule or public hatred or to prejudice him in the way of his office, profession or trade.[10]

1.2.6 Emma Walters and Alex Johnson (2005)

Emma Walters and Alex Johnson (2005) argued that defamation is the legal term used for accusing a person of a precise fact that harms their reputation. The fact must be printed, broadcast, spoken or otherwise communicated to others or only one other. Defamation laws exist to protect people against malicious and untrue stories about them. They aim to balance the right to freedom of expression and the need to protect people's reputations.[11]

1.2.7 Coulter Boeschen (2015)

Coulter Boeschen (2015) argued that, in essence, a defamation claim can arise when one person says something damaging about another person. However, if a plaintiff could successfully sue every time his or her feelings got hurt, there would be more defamation cases than the legal system could handle. For this and other reasons, defamation is a complex kind of tort (civil injury).[12]

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[10] Underhills ,the Law Torts, ,18 1946 edition p 23 3

[11] Emma Walters and Alex Johnson (2005) *Decriminalizing defamation*: an IFJ campaign resource for defeating criminal defamation, International Federation of Journalists,p.4

[12] http://www.alllaw.com/articles/nolo/civil-litigation/defamation-libel-slander.html. It is a snapshot of the page as it appeared on 16 Jun 2016 05:30:47 GMT.

1.2.8 Parke B

Parke B. argued defamation in *Parmiter v. Coupland* as ‘A publication, without justification or lawful excuse, which is calculated to injure the reputation of another, by exposing him to hatred, contempt or ridicule'.[13]

1.2.9 Mwahihojo C

Mwahihojo C, argued that, the term defamation can be defined as a publication that intends to lower the reputation of somebody to the understanding capacity of the society.[14]

1.2.10 Winfield (1963)

Winfield (1963) argued that defamation is the publication of a statement which tends to lower a person in the estimation of the right thinking members of society generally or which tends to made them shun or avoid that person. He thinks that a statement may possibly be defamatory even if it does not excite in reasonable people feelings quite so strong as hatred contempt or ridicule.[15]

1.2.11 David Baker (2006)

David Baker (2006) defines defamation as the publication of a statement which exposes a person to hatred, ridiculous or contempt or causes them to be shunned or avoided by right thinking members of society generally.[16]

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[13] (1840) 6 M&W 105
[14] Mwahihojo, C. Law of torts
[15] Winfield, Tort, 7 edition 1963, P.574
[16] Baker and C. Padfield, Tort Law, 2006.

1.2.12 Sir Percy H Winfield (2000)

According to **Sir Percy H Winfield (2000)**,[17] he said that defamation "is the publication of a statement which tends to lower a person in the estimation of right thinking members of the society generally, or which tends to make them shun or avoid that person".

1.2.13 Blackstone and George (1949)

Blackstone and George (1949) define defamation as the tort of publishing a statement which tends to bring a person into hatred, contempt or ridicule or to lower his reputation in the eyes of right thinking members of society generally.[18]

There are at least three basic elements o defamation which include publication, false statement and the statement must be defamatory by itself. Defences which can be applied in cases of defamation include justification of truth, fair comment, privilege and apology.

Defamation is false statement that harms the reputation of individual person, business, product, group, government, religion of nation. For a statement to constitute defamation a claim must generally be false and made to someone other than the person defamed and result injures the reputation of a person who is defamed.

1.2.14 Latiner, P (1985)

Latiner, P (1985) argued that, defamation is defined as a situation whereby one person creates publication of false or untrue information towards

[17] Percy H Winfield, *Law of Tort* 8th Edition, 2000

[18] Blackstone and George, Elements of the Law of Torts ,2 1949 edition p. 167

another person which in the end causes damage of someone reputation[19] . OR in other words the term defamation is defined as a publication that intends to lower the reputation of somebody to the understanding capacity of the society.[20]

1.2.15 Silvano Domenico Orsi (2011)

Silvano Domenico Orsi (2011) referred to in modern legal terminology as traducement, calumny, vilification, slander, or libel, is the communication of a statement that makes a claim (*actual malice required to be proven, in the case of the plaintiff being a public official*)[21], expressly, stated, or implied to be factual, that may give an individual, business, product, group, government, or nation a negative image.[22]

In *Sim v Stretch* it was stated that, defamatory statement is one which injures the reputation of another by exposing him to hatred, contempt, or ridicule, or which tends to lower him in the esteem of right-thinking members of society.[23]

1.2.16 Edwin Bingireki

Edwin Bingireki argued that, defamation is the publication of a statement by one person about another that damages his reputation. The statement must lower his reputation in the opinion of right thinking members of society.

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[19]Ese Malemi (2008), *Law of Tort,* Princeton Publishing Company, Ikeja, Lagos.
[20] Latiner, P. (1985) *Australian Law*, North Ryde: CCH
[21] New York Times Co. v. Sullivan, 376 U.S. 254 (1964).
[22] Silvano Domenico Orsi, Defamation: Tort or Crime? A Comparison of Common Law and Civil Jurisdictions, the Boston University School of Law (Class of 2011).
[23] Sim v Stretch [1936] 2 All ER 1237, 1240, per Lord Atkins.

In the case of *Hamis v. Akilimali*,[24] the term defamation was defined as communicating with the mind of another, matters which are untrue and likely in the natural cause of things substantively to disparage the reputation of third person (s). For the words to be defamatory the court must construe the words according to their fair and natural meaning which would be given to them by reasonable persons of ordinary intelligence.[25]
There is no single definition but defamatory material can be, for example, where someone's character is discredited or where the statement causes the person to be shunned by others is exposed to hatred. It is not enough to show that there has been a mere fact or opinions.

1.3 Defamation as Explained by the Act

Defamation is provided in Part V of the Act

1.3.1 on defamatory matter

The Act provides that, any matter which, if published is likely to injure the reputation of any person by exposing him to hatred, contempt or ridicule, or likely to damage any person in his profession or trade by an injury to his reputation is a defamatory matter.[26]

1.3.2 The position of defamatory matter to the deceased person

The Act continues to state that, any defamatory matter as described in section 35 (1) of the Act shall qualify to a defamatory matter even if it is published against a deceased person, as long as such prosecution of

[24] (1971) HCD No. 111
[25] Edwin Bingireki (2012), *Defamation in Tanzania*, available at http://hakiakili.blogspot.com/2012/06/defamation-in-tanzania.html, extracted on 8th May 2013 at 1345 hours.
[26] Section 35 of the Act

defamatory matter has been approved on a written consent by the Director of Public Prosecutions.[27]

Then even if a person dies, defamatory claims against him/her can still prevail.

1.3.3 Defamation in Print Media

A person shall be deemed to make publication of a libel if that person causes the print, writing, painting, effigy or other means by which the defamatory matter is conveyed, to be dealt with, either by exhibition, reading, recitation, description, delivery or otherwise, in a way that the defamatory meaning thereof becomes known or is likely to be known to either the person defamed or any other person.[28]

1.3.4 Directness and indirectness of defamatory matter

It shall not be necessary for the defamation that the defamatory meaning is directly or completely expressed. It is sufficient that such meaning and its application to the person alleged to be defamed may be collected either from alleged libel itself or from any extrinsic circumstances or partly from the one and partly from the other means.[29]

1.3.5 What amount to unlawful publication?

As long as the statement is not true and publication amount to publication by the meaning of communication to the public as discussed before, then such publication is unlawful publication. But in this Act as per section 37

[27] Section 35 (2 and 3) of the Act
[28] Section 36 (1) of the Act
[29] Section 36 (2 and 3) of the Act

provides for those circumstances in which publication is not unlawful such as if the matter published is true, and it was for the public interest. Also if such statement is considered as a privileged.[30]

1.3.6 Absolute Privilege

By the act of the defamatory statement being published or stated in absolute privilege, means whether it is a true or false statements, whether publication is of good faith or not, such defamatory statement cannot prevail.

A defamatory matter is absolute privilege if is published by the President or the order of the President, the Government or the order of the Government, or by any member of the National Assembly or speaker in any official document or legal proceedings.

If the matter is published concerning a person who is the subject to military or naval discipline for the time being, and relates to his conduct as a person who is the subject of such discipline and is published by the person having authority over him in respect of such conduct.

If the matter is published in the course of any judicial proceedings by a person taking part in court proceedings as judge or magistrate or commissioners or advocate or assessor or witness or party thereto.

If the matter is published in a fair report of anything said, done or published in the National Assembly, or if the person who publish it is legally bound to do so.[31]

[30] Section 37 of the Act
[31] Section 38 of the Act

When the statement provided has absolute privilege, the statement published by any means either true or false, known or to be known or believed to be false and whether it was publish with good faith or not, cannot constitute any legal responsibility.

However, this cannot exempt any person from civil or criminal liability if such publication which is treated to be absolute privilege is prohibited or relief to a person injured is available under the Constitution of the United Republic of Tanzania.

1.3.7 When Publication is conditionally Privilege

The defamatory matter is published privileged on condition if, it was published in good faith, if there is legal, moral or social duty of a person to publish the matter to the person whom publication is made or has a legitimate personal interest in publishing it as long as such publication does not exceed either in extent or matter what is reasonably sufficient for the occasion, and in any of the following incidences;

If the matter published is a fair comment of anything said, done or shown in a civil or criminal inquiry or proceedings before any court, but if it is prohibited then such privilege shall not prevail.[32]

If the matter published is a copy or reproduction or is a fair abstract of any matter which was previously published and that matter as was a privilege.[33]

If the matter published is an expression of opinion in good faith as to the conduct of any person in a judicial, official or other public capacity, or as to his personal character so far as it appears in such conduct.[34]

[32] Section 39 (a) of the Act
[33] Section 39 (b) of the Act
[34] Section 39 (c) of the Act

If the matter published is an expression of opinion in good faith as to the conduct of any person in relation to a public question or matter or as to his personal character so far as it appears in such conduct.[35]

If the matter published is an expression of opinion in good faith as to the conduct of any person disclosed by evidence given in a public legal proceedings (civil or criminal) as to the conduct of any person as a party, witness or otherwise in any such proceedings or as to his personal character so far as it appears in such conduct.[36]

If the matter published is an expression of opinion in good faith as to the merits of any book, writing, painting, speech or other work, performance or act published or publicly done or made or submitted by a person to the judgment of the public, or as to the character of a person so far as it appears.[37]

If the matter published is a censure passed by a person in good faith on the conduct of another person in any matter in respect of which he has authority, by contract or otherwise, over the person, or on the character of the other person, so far as it appears in such conduct.[38]

If the matter published is a complaint or accusation made by a person in good faith against another person in respect of his conduct in any matter, or in respect of his character so far as it appears in such conduct, to any person having authority, by contract or otherwise, over that other person in respect of such conduct or matter or having authority by law to inquiry into or receive complaints respecting such conduct or matter.[39]

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[35] Section 39 (d) of the Act
[36] Section 39 (e) of the Act
[37] Section 39 (f) of the Act
[38] Section 39 (g) of the Act
[39] Section 39 (h) of the Act

If the matter published is in good faith for the protection of the rights or interests of the person who publishes or of the person to whom it is published.[40]

1.3.8 Offer to Amends the Defamatory Statements

The Act provides for the opportunity to the person who publishes defamatory statements against another person if he claims that such defamatory statements were published innocently.

Therefore, if the aggrieved party accepts the offer then any legal proceedings shall not continue. But if the offer is not accepted by the aggrieved party, then the accused person may use such excuse as a defence before the court of law. This is possible only if; the words complained of were published by the defendant innocently in relation to the plaintiff; the offer was made as soon as practicable after the defendant received notice that they were or might be defamatory of the plaintiff, and has not been withdrawn.[41]

1.3.9 Ingredients of an offer to amends defamatory matter

In order for the offer to amends defamatory matter to be complete as described by this Act, it must be accompanied by an affidavit which specified the facts relied upon by the person making it to show that the words in question were published innocently in relation to the party aggrieved.[42] Nothing shall be accepted before the court of law as evidence

[40] Section 39 (i) of the Act
[41] Section 40 (1) of the Act
[42] Section 40 (2) of the Act

against the plaintiff's claim of defamation, other than the evidence of facts specified in the affidavit.[43]

1.3.10 The meaning of an Offer of Amends

An offer of amends shall be construed and understood to mean an offer in any case to publish or join in the publication of a suitable correction of the words complained of and sufficient apology to the party aggrieved in respect of those words.

And also where copies of a document or record containing the written words have been distributed by or with the knowledge of the person making the offer, to take such steps as are reasonably practicable on for notifying persons to whom copies have been so distributed that the words are alleged to be defamatory of the party aggrieved.[44]

1.3.11 What happened if the offer of amends is accepted?

If the offer of amends is accepted by the aggrieved party, if there is procedure or guidance on how to move on (after the acceptance) entered by both parties, then such matter shall be determine by the court of law. The court shall have power to make orders as to costs in proceedings by the party aggrieved against the person making the offer in respect of the publication in question as reasonably seen or requested.[45]

[43] Section 40 (3) of the Act
[44] Section 40 (4) of the Act
[45] Section 40 (5) of the Act

If there is no proceeding, the court may upon application made by the party aggrieved, make an order for the payment of the cost and expenses as the court finds just and appropriate.[46]

1.3.12 Conditions for the words innocently published

In order for the words published innocently, the following things must be considered first;

That the publisher did not intend to publish the words and concerning that other person and did not know of circumstances by virtue of which they might be understood to refer to that other person.[47]

The words were not defamatory on the face of it and the publisher did not know circumstances by virtue of which they might be understood to refer to that other person, and in either case, that the publisher exercised all reasonable care in relation to the publication.[48]

Is this above subsection applies to servants or agents of the publisher?

Yes this subsection 7 of section 40 of the Act is also applies to servants and agents of the publisher when it comes to the fact that such publication of contents were published innocently.[49]

The use of innocently publication of the contents as a defence by the person who is not the author cannot prevail as a defence, unless otherwise provided. Innocently publication cannot be used as a defence as per

[46] Section 40 (6) of the Act
[47] Section 40 (7) (a) of the Act
[48] Section 40 (7) (b) of the Act
[49] Section 40 (8) of the Act

subsection 1 (b) of section 40 of this Act, if a person who published it is not the author unless he proves that the words were written by the author without malice.[50]

1.4 Redress for Defamation

This part is the most interest part in this paper as the fact that the matter of electronic contents has been discussed. The Act provides that, where a person alleges that, a print or electronic media content is defamatory within the meaning of this Act, that person may file a case in the court for redress.[51]

1.4.1 Procedures for the Redress

In order to institute a defamatory case before the court of law, a copy of a print or electronic media content complained about must be produced. If such productions of those necessary documents are impossible to be extracted, an aggrieved party must produce a statement showing that such productions of those documents were impossible.[52]

As all procedures completes, then the court shall as soon as practicable and in accordance with procedural laws, hear and determine the case.[53]

1.5 The Role of the Act in Cyber Defamation

As I said earlier that, section 41 (1) of the Act creates the basis for the redress of cyber defamation to the person who is affected to it. The

[50] Section 40 (9) of the Act
[51] Section 41 (1) of the Act
[52] Section 41 (2) of the Act
[53] Section 41 (3) of the Act

provision includes terms such as electronic media content, electronic contents which automatically simplifying the presence of cyber defamation. Among other thing, the Act has provided for a number of terms which in one way or another provides for the cyber defamation;

1.5.1 Content

Content has been defined as to include information in print or **electronic media image**, drawings, cartoons, and any other characters, whether moving or still.

The term electronic media image signifies the prohibition of cyber defamation in our country as a person who will be found transmitting such nature of contents which is defamatory by nature will suffer the legal consequences.[54]

1.5.2 Editor

The term means a journalist who is in charge of production of content for radio, television, newspaper, journals and magazine, and includes online platforms for radio, television and newspaper.

To include online platforms for radio, television and newspaper, this signifies the prohibition of cyber defamation as currently due to the development of science and technology, a number of online magazines; radio, newspapers and televisions have been established.[55] Hence it is very easy for the online defamation to be conducted by these medium of instructions, so whosoever editor commit an offence of defamation online

[54] Section 3 of the Act
[55] ibid

cannot escape the liability as the law has included him/her as one among the person (s) who can produces information online, hence became a netizens in cyber world.

1.5.3 Electronic Media

This means a mode of communication of content to the public by television, radio, video, cinema, e-newspaper, or by any other electronic means and devices including social media, applications and any other related means.[56] This provide a wide range in the fight against cyber defamation as there are a lot of defamatory statements in social media platforms such as Facebook, twitter, Instagram and the likes of, hence by recognizing electronic media will build a strong mechanism in fighting against online defamation.

1.5.4 Media

Means the industry, trade or business of collecting, processing and dissemination of content through radio, television or newspapers, and includes online platforms.[57]

Online platforms as discussed earlier includes social media such as Facebook, twitter, Instagram and the likes of, online newspapers and magazines.

1.5.5 Newspaper

Means a printed o published materials in the form of tabloid, broadsheet, magazine, newsletter and other periodicals or electronic form which

[56] ibid
[57] ibid

contains; news, articles, advertisements, photos and cartoons, reports of occurrences, or comments or observations which are published for distribution to the public either daily or periodically.[58]

This means, now a newspaper has been also included in online basis, as we can see now a number of traditional magazines and newspaper in Tanzania opens websites and other online platforms which publishes and distributes information hence if not recognized by the law may lead to a destruction of people's reputations.

1.5.6 Social Media

This means online interactions among people in which they create, share, and exchange information and ideas in virtual communities, networks and their associated platform of new technology.[59]

Social media acted as the area for the defamatory statements. We have already witnesses a number of defamation cases in social media including the one which involves our current President JPM. The act of recognizing social media in this Act provides more power in fighting against cyber defamation as social media is one among the electronic media in which a lot of information is transferred. Hence if not recognized by the law may lead to a destruction of people's reputations.

1.6 Offences and Penalties Relating to Defamation

The Act provides a number of offences and their penalties regarding to defamation.

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[58] ibid
[59] ibid

1.6.1 Offences relating to media services

The Act provides that, any person who makes use by any means, of media service for the purpose of publishing information which is intentionally or recklessly falsified in a manner which threatens the interests of defence, public order, and the economic interests of the United Republic, public morality or public health. If such published information injuries the reputation, right and freedom of the other persons.

Information which is maliciously or fraudulently fabricated or any statement the content of which is threatening the interests of defence, public safety, public order, the economic interests of the United Republic, public morality or public health or information which injuries the reputation, right and freedom of the other persons or a statement with maliciously or fraudulent intent representing the statement as a true statement or prohibited information, commits an offence and upon conviction, shall be liable to a fine of not less than five million shillings but not exceeding twenty million shillings or to imprisonment for a period not less than three years but not exceeding five years or both.[60]

Also section 50 (2) among other things provides that, any person who disseminates false information without justification commits an offence and shall be liable to a fine of not less than five million shillings and not exceeding twenty million shillings or to imprisonment for a period not less than three years but not exceeding five years or both.[61]

[60] Section 50 (1) of the Act

[61] The Media Services Act No.12 of 2016

1.6.2 Offences in Relation to Publication

The Act provides that, any person who imports, publishes, sells, offers for sale, distributes or produces any publication or any extract of it, the importation of which is prohibited, commits an offence and shall be liable upon conviction for the first offence to a fine of not less than five million shillings but not exceeding ten million shillings or to imprisonment for a term not less than three years but not exceeding five years or to both, and for a subsequent offence to a fine not less than eight million shillings but not exceeding twenty million shillings or to imprisonment for a term not less than five years and not exceeding ten years.[62]

Further the court may order forfeiture of a publication or extract in respect of which an offence was committed.[63]

1.6.3 Publication likely to cause fear and alarm

The Act provides that, any person who publishes any false statement, rumor, or report which is likely to cause fear and alarm to the public or disturb the public peace commits an offence and shall be liable upon conviction to a fine of not less than ten million shillings but not exceeding twenty million shillings or to imprisonment for a term of not less than four years and not exceeding six years.[64]

It shall be a defence if the accused proves that, prior to publication; he took such measures to verify the accuracy of such a statement, rumor or report

[62] Section 51 (1) of the Act
[63] Section 51 (2) of the Act
[64] Section 54 (1) of the Act

and that the verification leads him to reasonably believe that the publication was true.[65]

1.6.4 Offences committed by Corporation Societies

It shall be an offence to any company or other body of a corporate to conduct an activity that is prohibited by the Act.

When an offence is committed by the corporation or the company such as publication of defamatory statement, the Act provides that, every person who at the time of the commission of the offence was concerned as director or an officer with the management of the affairs or activities of such company or other body corporate, or society, association or body of persons, shall be deem to have committed the offence and be liable to be proceeded against and punished accordingly, unless he proves to the satisfaction of the court that he had no knowledge, and could not by the exercise of reasonable diligence have had knowledge of the commission of the offence.[66]

When the company or corporate body or society is found guilty of an offence, it shall be liable for a fine of not less than fifteen million shillings but not exceeding twenty five million shillings.[67]

This is another illustration which illustrate that a company cannot be jailed other than penalized through fines and compensations.

[65] Section 54 (2) of the Act
[66] Section 55 (1) of the Act
[67] Section 55 (2) of the Act

1.6.5 Vicarious Liability

The Act provides that, where the offence is committed by an agent or employee, then the principal or employer under whom the offence was committed shall be deemed to have committed the offence and be proceeded against and punished accordingly unless such employer proves to the satisfaction of the court that that he had no knowledge, and could not by the exercise of reasonable diligence have had knowledge of the commission of the offence.[68]

1.7 Exemption on liability to printers

The Act provides the exclusion of printers from defamation and sedition liability if at the time when such publication was made they had neither knowledge nor existence of such seditious and defamatory content.

A printer shall, when providing printing services for print media, not held liable for a seditious or defamatory content; unless it is proved that he acted with knowledge of the existence of such seditious or defamatory content.[69]

A printer having sufficient prior knowledge or upon being notified that the content to be published contains seditious or defamatory content and who proceeds to print or fails to take necessary steps to prevent the printing of such content, commits an offence and is liable on conviction of not less than ten million shillings but not exceeding twenty million shillings or imprisonment for a term of not less than three years or both.[70]

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[68] Section 56 of the Act
[69] Section 64 (1) of the Act
[70] Section 64 (2) (a) of the Act

In case of defamatory content, to a fine of not less than fifteen million shillings but not exceeding twenty five million shillings or imprisonment for a term not less than three years or both.[71]

1.8 Conclusion

Defamation is the concept that is known by many of the lawyers worldwide. The common thing that made this tortuous liability to be that known is the nature of the offence itself. Harmful of someone reputation or dignity is a serious matter because it is from our dignity and reputation whereby our lives are generated. The more good will or reputation a person has, the more wealthy and opportunity come across that person.

Thus it is one among the torts which aimed at securing, restoring and preserving someone's reputation from being damaged. Other torts relating to maintenance of someone's reputation are malicious prosecution, abuse of procedure and false imprisonment. In defamation it is not necessary for a person to incur or sustain physical injury, what the court decide is whether someone's reputation has been injured or not. The main aim is either to prevent threatened damage to the reputation before it happen or compensate a person for the damage of such reputation

After looking at the Act, we have seen a number of provisions that provides for prohibition of defamation and cyber defamation. Comparing this Act with the Act No.14 of 2015 which also provide a single provision on defamation, Act No.12 of 2016 provides more understandable and precise provisions regarding to defamation and cyber defamation as seen in this paper.

[71] Section 64 (2) (b) of the Act

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